

**Disputed Islands & Territorial Seas:
A Question of Sovereignty Assertion & UNCLOS Ambiguity**

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Abstract

This paper seeks to survey the intricate dynamics surrounding the Islands of the East China Sea known as the Senkaku, Diaoyu Dao, or Diaoyu Tai by their claimants, Japan, China, and Taiwan, respectively. For ease, these islands will herein be referred to as the Senkakus. This paper additionally posits the question of what validity and rights artificial islands hold in the international system as projects like the Great Wall of Sand begin to drive significant tensions in the region. This paper delves into the history of these islands and looks to the precedent of previous artificial islands for context on their validity today. The role of each actor involved in these tensions, as well as the actors affected by the results of these tensions, is discussed to give the necessary background to this study. This includes examining the strategic opportunity these disputed territories can offer in terms of economic and military position. Further, the ever-shifting political dynamics of how each actor affects the tensions will be reviewed to consider the overall state of current tensions and their significance at the international level. As the United Nations, in and of itself, behaves as a key actor in territorial disputes and tensions, its relation to this topic is thoroughly examined. Namely, this includes the effects of the United Nations Convention on the Law of the Sea, UNCLOS, upon the positions held by key actors. Lastly, the present effects of state actors' recent increases in military activity and nationalistic views towards territory during the existing diplomatic stalemate will be reviewed for the development of novel diplomatic resolutions.

Introduction

The fight for territory is one of the most common conflicts seen throughout history. Today, disputes over territory, while of similar magnitude and importance, can be much more subtle in the international system. Territory in the East and South China Sea presents significant opportunities to surrounding nations due to their strategic value both economically and militarily. Key actors in these tensions include China, Japan, Taiwan, the United States, the UN, and the Permanent Court of Arbitration (PCA). As China, Japan, and Taiwan directly seek to claim territory in the region, this paper will also refer to them as claimants.

In addition to competing for natural islands such as the Senkakus, some states have turned to land reclamation projects to assert their sovereignty over the region. One such example is the Great Wall of Sand project, which has led to the construction of artificial islands that have been developed in an effort to secure territory. Such drastic action itself outlines that state actors have recognized the diverse advantages of governance over territory in the East and South China Sea. The artificial islands built upon reefs that this paper questions are Mischief Reef (Meiji Jiao), Subi Reef (Zhubi Jiao), and Fiery Cross Reef (Yongshu Jiao).

Overall, this paper seeks to address the challenges faced by the diplomatic stalemate over disputed islands and territorial seas today through research into each actor's historical claims and sovereignty assertions, regional incentives, territorial seas, UNCLOS, modern developments in the region, and the current state of tensions.

Historical Claims & Sovereignty Assertions

At the core of the tensions over the Senkakus are the variations in historical perspective and treaty recognition by key actors. These claims and their legitimacy are complex because, as Goldstein and Pevehouse point out, "Historical claims to territory often become complicated when multiple nations have evidence of past control" (2020, p. 193).

Japan's claim over the islands mainly considers various actions taken by Japan and the U.S. since the 19th century. In the late 1800s, Japan conducted a large surveying program of surrounding territories and islands. It was during these expeditions that the Japanese government discovered the undisputedly uninhabited Senkakus. As these islands had no people, Japan deemed them *terra nullius*, a legal term directly meaning a territory without a master, or more normatively, it was described as nobody's land. This term in itself outlines the possibility of later tension, as *terra nullius* was also used as a key legal basis for colonization, which often ended in colonialist nations losing control over territories once claimed under *terra nullius* legality.

Years after the expeditions, Japan incorporated the islands in 1895 into the Okinawa Prefecture, as was their right under the *terra nullius* legality of the late 1800s. As this system of territorial claim was used by Britain and France during the same period, Japan claims that their incorporation of the territory was as legitimate as territorial proceedings could be at the time. After the conclusion of World War II, Japan ceded administration over the islands to the U.S. via the Treaty of San Francisco in 1951. Specifically, this was done through Article 3 of the treaty, which explicitly named the Senkakus as a region of the Ryukyu Islands in turning over administration to the U.S. This treaty was of significant importance as it was recognized by many states as highly legitimate. Two decades later, in 1971, under the Okinawa Reversion Agreement, the U.S. returned administration of the region to Japan implicitly. The agreement

returned control of the Ryukyu Islands, which Japan asserted encompassed the Senkaku Islands. Japan has actively maintained administration over the islands since 1971, strengthening its territorial claim.

Much more recently, Japan's Ishigaki City Council of the Okinawa Prefecture voted and legislatively renamed the islands from the Tonoshiro to the Tonoshiro Senkaku islands. This marked Japan's renewed efforts to claim the region as solely their own. Further, this provided an impetus for other nations to recognize the name change as standing internationally, boosting the legitimacy of Japan's claims and outlining the nations that support Japan's Sovereignty assertions. No nation has yet to recognize the name change, however, and many European nations refuse to comment as they continue their position of staunch neutrality.

China's claim over the Senkakus, which they refer to as the Diaoyu Dao, is based on ancient historical records dating back dynasties as well as multiple denials of legitimacy. China states that its use and ownership of the Senkakus predates Japan significantly. They state this is outlined by ancient documentation, including navigational maps. Further, they argue that Japan's legal basis for the incorporation of the Senkakus in 1895 is inherently wrong. China asserts that they were the master of the territory, which would, in effect, dispel the terra nullius legal justification of incorporation used by Japan. However, China's claim is also based on the terra nullius justification, as they posit that in ancient times, the Chinese were the first to claim the territory. This posits a who claimed the territory first style argument between two of the most powerful nations on the planet, Japan and China.

China follows through on its denial of Japan's territorial claims by continually refusing to recognize international treaties and agreements seen as historically legitimate. Namely, since 1951, China has significantly pushed back on the terms of the Treaty of San Francisco and

refused to recognize it whatsoever, outside of denying its legitimacy. China argues that the treaty is illegal because they were excluded from negotiating and developing the agreement, which directly affects territory they view as solely their own. The 1971 Okinawa Reversion Agreement was also challenged by China, as they believed the U.S. had no right to grant administration over Chinese territory to Japan. This is a position still fiercely taken by the Chinese government as Chinese embassies release statements such as the following regarding the Senkakus, “The Chinese government has, from the very beginning, firmly opposed and never acknowledged such backroom deals between Japan and the United States concerning Chinese territories” (Hou Yue, 2012, p. 1).

Today, China argues that the relationship between itself and Japan cannot move forward until disputes over these territories are addressed, and that to do so Japan must “abide by what it called a consensus reached between the two countries, stop political provocations, on-site incidents and hyping up public opinion” (VOA Publishing, 2024, p. 1). This is likely in reference to the Treaty of Peace and Friendship, which promoted international relations while tabling issues such as the Senkaku dispute.

Taiwan’s perspective is highly similar to that of China. Much of Taiwan’s argument is based on similar evidence and the claim that Taiwanese fishermen occupied the territory in times predating the Japanese. However, it is important to consider that due to various treaties and conflicts, Taiwan itself had its governance transferred back and forth over the same period in which Japan incorporated the Senkakus. This leads Taiwan’s claims to be subject to greater scrutiny or outright denial, as their sovereignty assertion requires they themselves to be a recognized nation. Additionally, if Taiwan's claims over the Senkakus were valid, it would

implicate a level of statehood that neither the international system nor China would likely allow to be considered legitimate.

The U.S. perspective plays a distinctive role. The U.S. has historically created legitimacy for the Japanese through treaties and agreements previously discussed. Further, the U.S. security pact in essence grants Japan significant military authority, as an attack on Japan would, in theory, incur retribution from the military might of the U.S. in addition to Japan's own military forces. Notably, though, the U.S. has shifted to a position of neutrality on the Senkakus. This is outlined in the U.S. failure to recognize the discussed Toshiro name change of the Senkakus over the last five years. Some believe that the U.S. should recognize the Senkaku name change and accept Japan's current claims as legitimate to better the U.S. Japan relationship. This is well posited, Professor Raul Pedrozo, in his published works under the U.S. Naval War College, which goes on to state, “recognizing the islands as Japanese territory will strengthen the U.S.-Japan alliance and enhance regional strategic security and stability.” (Pedrozo, 2021, p. 653). Whether the U.S. takes this action is a result only the formation of history can determine. The perspective that it will increase stability is disputed amongst U.S. military officials and is likely the reason for the U.S.’s more neutral position. The U.S.’s key role, however, has been its historical lending of legitimacy and its position in the Japan-U.S. Security Treaty.

These differing historical perspectives and views of legitimacy create an imbalance between the actions each claimant can take under the international system and the authority they would like to express over the territory. This historical narrative brings us to the diplomatic stalemate in the Senkakus today.

Regional Incentives, Territorial Seas, & UNCLOS

To derive a way forward from this diplomatic stalemate, this paper seeks to understand what has been driving claimants to compete for territory. How UNCLOS plays into these incentives as both a supporting and limiting factor is also considered here. Further, this paper posits that due to the power of the states involved and the high reward of claiming territory in this dispute, the possibility of escalation is significant, as states are capable of taking greater risks. As Goldstein and Pevehouse note, "territorial disputes, especially those involving multiple powerful nations, often carry the greatest risk of escalating into serious conflict" (2020, p. 84).

This paper finds that the two main regional incentives that lead nations to compete over territory in the East and South China Sea are economic and military factors.

The most notable economic opportunity is the exclusive economic zones, or EEZs, that claimants would secure after securing governance over local disputed islands. An EEZ is a complex allocation of territory to a nation. EEZs can extend up to 200 miles from the shore of a nation and be used for the exclusive economic gain of that nation to an extent. These waters are still considered international seas, and limiting traffic through EEZs is not a granted right. Overall, the possibility of an EEZ could be used to justify economic control of over 100,000 square miles of the East or South China Sea. EEZs are distinct from the more commonly known territorial seas, which in essence provide a state actor sovereignty over the water within a twelve-mile range of the land claimed. Territorial seas grant many nations the authority to use all resources within a twelve-mile range of their governed land. Standard territorial seas and EEZs have exceptions to the twelve-mile law and 200-mile provision, including when an island nation's proximity to another nation is less than twenty-four miles or four hundred miles. One

such case is the USVI and BVI in the Caribbean. In cases such as these, bilateral negotiations between state diplomats often lead to the zoning and final partitions of territorial seas and EEZs.

As the right of governance over island nations such as Senakakus is disputed, it presents a major opening for states to compete for governance over the region in a concerted effort to seize control of territorial seas and fight over where EEZs are drawn. States compete for governance as it grants them justification in attempts to claim international seas as territorial waters and further to claim EEZs near these waters. This transition would shift seas normally used as key shipping lanes or international fishing grounds into assets of a nation. This transition also allows for the state with recognized governance to claim rights to the natural resources within their claimed EEZ's such as the plentiful oil and natural gas reserves in the region.

This same transition would also increase a competing state's military presence and capability significantly in the region through the establishment of military outposts. These islands offer key strategic locations for maritime surveillance, power projection, and influence on vital waterways. As Goldstein and Pevehouse explain, "Control over territory, especially in strategic locations, remains one of the most fundamental aspects of international power" (2020, p. 127).

Diving into the exact parameters of UNCLOS, this paper calls attention to one of the most pertinent articles of the convention, which establishes territorial waters, Article 3. This article creates the provision that allows coastal nations to claim territorial seas within a 12-nautical-mile range of their waterline borders. Both the seabed and airspace below and above territorial waters are under the sovereignty of that nation.

Further, Article 57 outlines what constitutes an exclusive economic zone or EEZ. This article provides nations with the right to claim EEZ rights over water regions extending up to a

maximum of 200 miles from their shorelines. In the Senkaku dispute, the EEZs that multiple nations claim overlap, leading to a conflict of understanding.

Article 121 discusses the regime of islands and defines a natural island as “a naturally formed area of land, surrounded by water, which is above water at high tide” and that in section 3 “that rocks which cannot sustain human habitation or economic life of their own shall have no exclusive economic zone or continental shelf, although they are still entitled to a territorial sea.” (UNCLOS, 1996, p. 63). How the Senkakus and artificial islands are defined becomes a critical question, as per Article 121, only islands of natural formation that can support human habitation can be used for the justification and application of EEZs.

Lastly, Article 60 brings up the point of artificial islands directly, going on to state that they can be built within a nation's own EEZs. However, this article poses ambiguity as it fails to state if nations can develop artificial islands outside of EEZs and how artificial island rights differ from natural island rights discussed throughout the convention. This brings this paper to a key challenge to solving the diplomatic stalemate, Article 60 ambiguity, and the need for the convention to be updated to address the Great Wall of Sand reclamation project, as well as future disputes.

The distinctions between states' justifications for governance and the legislation outlined in UNCLOS present a gap between the actions of individual states and existing international standards. It partially falls upon the UN to address these distinctions, as the actions of the states differ from UN legislation. This brings us to another challenge that these disputes face: the lack of enforcement protocols by the UN.

Modern Developments in the Region

As the diplomatic stalemate has continued, there have been various escalations by key actors due to many factors.

A factor of note that has only increased the incentives for escalation with time is the discovery of significant natural resources in the East China Sea. Specifically, the discovery of the Pinghu oil and gas field in the 1980s, which was then estimated to contain “Approximately 22 million barrels (b) of petroleum and other liquids and 482 billion cubic feet (Bcf) of natural gas” (EIA, 2024, p. 2). This led to significantly more focus on securing the region, and made doing so a national priority for increased economic reasons. According to modern reports from the USGS, “It estimated the East China Sea has potentially 1 to 160 oil fields, which may contain resources of anywhere between 310 million and 1.7 billion barrels of petroleum liquids. It also estimated the sea has potentially 1 to 10 natural gas fields, which may contain resources of between 1.3 Tcf and 7.3 Tcf of natural gas” (USGS, 2021, p. 3). This presents trillions of dollars of potential national assets that have served to escalate competition over territorial control. Given that the discovery of these significant resources was over forty years ago, the lack of development of the oil fields in the region displays the ongoing restraint of each nation to take action before the territorial dispute is settled.

The development of artificial territory is the most notable modern development in the region, and a topic that is yet to be fully defined by the international system. Land reclamation projects in the South China Sea pose a complicated legal question, as the Great Wall of Sand Project is the first artificial island project of a magnitude significant to the international system. It presents a landmark case.

A case pertaining to this issue was the case of the nine-dash line. Brought up in 2014 when the Philippines claimed that China's actions violated existing UNCLOS provisions. Specifically, the Philippines believed that the Nine-Dash line, a geographic marker that China used to identify territory it claimed as its own, violated international maritime law. Thus, the South China Sea Arbitration began and lasted for two full years before a final ruling was made at the Hague in 2016. The PCA ruled that the actions of China violated existing international legislation set out in UNCLOS provisions. The PCA's final ruling cited articles 56 and 77 of UNCLOS, which protected the rights and access of the Philippines to their own EEZs and territorial waters. Further, the PCA cited that China violated multiple convention articles on environmental protection, including articles 123, 192, 194.1, 194.5, 197, and 206 in justification of their ruling. China promptly denied the legitimacy of the ruling and claimed that its argument was baseless. The PCA cites that, under articles 9 and 288 of the UNCLOS convention, they were given jurisdiction to rule over a dispute of this nature. This brings this paper to another issue in developing a solution to the diplomatic stalemate: diplomatic enforcement from international bodies lacks the magnitude to affect the situation, so a compromise between states will need to be developed in its place.

There have been recent increases in military force by both China and Japan in the region. China and Japan have deployed greater numbers of their coast guards and navies to patrol the area and monitor actions taken. Further, China has also introduced air force and army resources to the region through its artificial islands. This includes the development of military capacity on the artificial islands upon China's Great Wall of Sand, including the islands built upon Mischief Reef (Meiji Jiao), Subi Reef (Zhubi Jiao), and Fiery Cross Reef (Yongshu Jiao). Additionally, the military presence of each has been conducting a greater number of military exercises. This

increase in military force has worsened anxiety over the potential of a non-peaceful resolution to these major territorial tensions.

Another modern development surrounding these tensions is the growing nationalistic sentiment that is pushing nations to act in greater magnitude to secure these key islands in the South and East China Sea. This increase in nationalistic sentiment toward these territories has directly led to increases in public and political pressure to assert sovereignty, indirectly leading to increases in military presence. An example of this includes China's actions to force international shipping vessels to acknowledge Chinese territorial seas, in what are historically key international waterways for commercial freight and sea trade. This is mainly seen in China's patrolling of the Taiwan Strait and their active assertion that it is a territorial sea passage and not international waters. Enforcement through patrols and significant military capacity allows China to assert itself heavily over the East and South China Seas.

Further, as claiming these territories becomes a higher public and political priority for both China and Japan, it heightens the difficulty of developing a resolution amenable to both claimants as they become increasingly unwilling to negotiate over territory they assert as their own. This presents another key challenge in the diplomatic stalemate: how do China and Japan work to de-escalate the tensions when each nation is increasing the fervor with which they seek to claim disputed territory?

Current State Of Tensions & The Diplomatic Stalemate

The disputes between nations over the islands and territorial seas of the East & South China Seas have developed into an insecure impasse defined by tactical uses of authority and bottlenecked negotiations. Though the use of military force has yet to escalate into serious violence, the area today exists as a possible source of significant global conflict.

Encounters between the key claimants, China and Japan, are at an all-time high as patrols have been increasing in the region. As it was put by the Crisis Group, “the frequency of close encounters between Chinese and Japanese vessels has increased by 50% since 2018, creating heightened risk of miscalculation or accidental confrontation.” (2023, p. 2).

The United States has largely kept its existing stance in this dynamic situation, maintaining a point of both neutrality and tactical influence through its military backing via the existing security pact. This constrained position taken by the U.S. was outlined in a 2023 statement made by both Japan and the U.S. following their Security Consultation Meeting, which went on to state how committed the U.S. is to maintaining Japan's security, while not mentioning the Senkakus.

Economic incentives in the region only continue to grow in their influence on claimants, as the battle for rights in the region continues to grow. The natural resources present in these areas would not only benefit national economies but also aid in reducing national energy dependence on imports, spurring further competition today. However, economic factors also serve as a key deterrent to direct conflict, as the international trade between China and Japan exceeds 370 billion dollars annually.

Diplomatic methods of communication that have been actively used for multiple diplomatic terms have begun to corrode as a successful compromise has continued to elude these diplomatic channels. While previous treaties between China and Japan served to become successful in their goals, they failed to outline a method for tension resolution on territorial issues. Further, modern legal cases brought into play through bodies such as the PCA have been disregarded to the point of insignificance, as existing enforcement mechanisms fail to aid in implementing rulings.

The last and arguably most critical modern development is the growing nationalistic sentiments in China and Japan. As public opinion's perspective towards taking action can heavily influence the actions of a government, the increasing sentiment in claimant nations' societies that asserting sovereignty over the region is a non-negotiable must for economic and national security, creates further concern of immediate escalation of this dispute from close encounters into direct military conflict. At the least, these sentiments significantly restrict the freedom with which each claimant can act.

Conclusion

Novel diplomatic solutions are needed in order to successfully and fully address the disputes over the Senkakus, artificial islands, and the fight for territorial control in the East and South China Seas. This paper posits that diplomats need to view this issue as more than a zero-sum game over territory and resources. Looking beyond zero-sum considerations, multiple new proposals come to light for consideration by claimant nations.

A strong option that takes feasible and responsive action is the immediate development of a joint development zone or JDZ. This joint development zone could remain separate from

competition over the Senkakus themselves and directly address a key underlying factor driving each claimant to compete. This would allow claimants to put aside the question of sovereignty so that they could prioritize developing methods for resource exploration and division. Each claimant may argue that they are entitled to the entire allocation of resources from the zone, but this paper posits that a mutually beneficial JDZ would be amenable in a way that past proposals have failed to be. This proposal draws from successful cases like the development of the Thailand-Malaysia JDZ, which has allowed for resource extraction and division since 1979.

Convening the UN General Assembly to expand UNCLOS and establish directly applicable legislation presents another possible avenue of working to address the diplomatic stalemate. This method is outlined as it uses the legitimacy of the UN itself to directly address the issue. Further, this method is heavily based on the decisions of nations in neutral standing, aiding in creating an objective solution. Historically, UNCLOS articles, especially in the cases discussed, have been used to exploit territory rather than to resolve disputes. This is in part due to the ambiguity of articles such as Article 60 on artificial islands and unclear methods of enforcement for nations deemed not to be in UNCLOS compliance. This paper posits that the UN should convene to develop UNCLOS IV with haste to aid in addressing this and future maritime disputes.

Expanding existing methods of communication that have been shown to be successful presents a method of easing tensions. This paper specifically posits expanding the 2018 Maritime and Aerial Communication Mechanism (MACM) between Japan and China. The goal of this program is de-escalation and is considered one of the largest reasons conflict has yet to break out, even with the maintained increase in tensions. Expansions could include creating protocols on fisheries, commercial traffic, and personnel vessel regulations for the region. This method is

posited as building upon success is a favorable mechanism that claimants would likely be amenable to, as it does not significantly compromise national interest.

This paper posits that an impartial nation should serve as the base of diplomatic negotiations on the issue going forward. While many nations could serve in this capacity, Australia has a unique perspective that can be used to advise claimants equitably. Additionally, third-party support from a nation may spur classical negotiations to break through the existing diplomatic stalemate.

Overall, in order to break through the existing diplomatic stalemate and resolve these complex disputes, claimants must be open to considering that existing perspectives and methods of negotiation centered around a zero-sum game are not feasible and that, instead, they must look to nuanced methods of addressing these disputes. Claimants must prioritize easing tensions through shared guardianship and management, focusing on points of mutual economic benefit and collective security. Claimant nations should shift their perspective through political courage, creative proposals, initiative, and willingness to think outside of traditional maximalist thinking, to create a future where this case may come to serve as a model for future disputes.

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